

05-NOTICE-OF-APPEAL SOURCE ARCHIVE (MARKDOWN LISTINGS)

Case No. CGC-25-631801

801-APPEAL/05-NOTICE-OF-APPEAL/source/*.md

01-NOTICE-OF-APPEAL

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title: "Notice of Appeal"
case: CGC-25-631801
authority: "Code Civ. Proc. 904.1(a)(13); CRC 8.100, 8.104, 8.108"
deadline_rule: "60 days after the earliest of clerk-mailed or party-served notice of entry, or 180 days from
    entry, whichever is earlier (CRC 8.104); extended by post-trial motions per CRC 8.108"
filing_date_target: TBD
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NOTICE OF APPEAL

<!-- BLOCK 1: NOTICE OF APPEAL -- the one-page operative document.

California uses Judicial Council form APP-002 for unlimited civil cases.

This skeleton mirrors the operative content; the actual filing should use the JC form unless a typewritten alternative is appropriate. -->

****TO THE COURT, THE CLERK, AND ALL PARTIES AND COUNSEL OF RECORD:****

****PLEASE TAKE NOTICE**** that Plaintiff and Appellant ****Franciscus Dylan Rosario****, in pro per, hereby appeals to the ****California Court of Appeal, First Appellate District****, from:

- The ****order granting defendants' special motion to strike the First Amended Complaint**** entered on ****May 12, 2026**** (see [10210043.pdf](../10210043.pdf), lines 132-135), and any judgment of dismissal entered upon that order.

This appeal is taken under ****Code of Civil Procedure section 904.1, subdivision (a)(13)**** (orders granting or denying a special motion to strike under 425.16 are immediately appealable).

Filed in the Court of Appeal (NOT the trial court) in response to the clerk's notice of filing of the notice of appeal. Use the Judicial Council fillable form at <https://courts.ca.gov/forms>; this markdown is a planning skeleton only.

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****Form:** APP-004 (Judicial Council)**

****Court:** Court of Appeal of the State of California, ****First Appellate District******

****Case caption:** *Rosario v. Abdelhalim et al.*, Court of Appeal No. ****[ASSIGNED ON FILING]******

****Trial court case number:** CGC-25-631801**

Required content checklist

- [] Item 1: Identification of the appeal (notice of appeal date; trial court order/judgment date: May 12, 2026)
- [] Item 2: Type of judgment/order appealed from -- *****Order granting motion to strike under CCP 425.16 (anti-SLAPP)****
- [] Item 3: Statutory basis -- *****CCP 904.1(a)(13)****
- [] Item 4: Time spent in trial court (if applicable)
- [] Item 5: Likely issues on appeal (high-level only; see CRC 8.100(g))
 - [] Prong-one error (10210043.pdf 38-78)
 - [] Prong-two error (10210043.pdf 81-117)
 - [] Civil Code 47(b) privilege application (10210043.pdf 118-131)
 - [] Disposition / scope (10210043.pdf 132-135)
- [] Item 6: Related appeals or writs (if any; consult ROA)
- [] Item 7: Counsel / self-represented information
- [] Item 8: Settlement and oral argument preferences

<!-- TODO: complete each item from the JC fillable form before filing. -->

****Cross-references:****

- Source order: [10210043.pdf](../../10210043.pdf)

03-NOTICE-DESIGNATING-RECORD-APP-003

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title: "Notice Designating Record on Appeal (APP-003) -- Election of Agreed or Settled Statement"
case: CGC-25-631801
authority: "CRC 8.120, 8.121, 8.122, 8.130, 8.134, 8.137; Judicial Council Form APP-003"
deadline_rule: "Filed in trial court within 10 days after filing the notice of appeal (CRC 8.121(a))"
filing_date_target: TBD
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# NOTICE DESIGNATING RECORD ON APPEAL (FORM APP-003)

<!-- BLOCK 3: RECORD DESIGNATION
    Pre-elected election: AGREED STATEMENT (CRC 8.134) or SETTLED STATEMENT
    (CRC 8.137) because the May 12, 2026 minutes confirm "Reporter: N/A"
    (see COURT-OFFICIAL/CGC-25-631801/minutes/10210043-PARSED.md, line 24,
    and parsed metadata field reporter: "N/A"). With no reporter, no
    verbatim transcript exists for the May 12, 2026 hearing, so a
    reporter's transcript under CRC 8.130 is unavailable for that hearing.
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**Form:** APP-003 (Judicial Council)
**Court:** San Francisco Superior Court, Dept. 301
**Trial court case number:** CGC-25-631801

## Election regarding oral proceedings (CRC 8.121(b)(1))

- [ ] **Reporter's transcript (CRC 8.130).** -- *NOT ELECTED for the May 12, 2026 hearing.* The clerk's
    minutes confirm "Reporter: N/A" for that hearing (see [COURT-OFFICIAL/CGC-25-631801/minutes/10210043-
    PARSED.md](../COURT-OFFICIAL/CGC-25-631801/minutes/10210043-PARSED.md), parsed metadata, and
    minutes line 24). No reporter was present and no transcript exists for the appealed-from hearing.

- [x] **Agreed statement (CRC 8.134) OR Settled statement (CRC 8.137)** -- **PRE-ELECTED**. Because the May
    12, 2026 hearing was unreported, appellant elects to proceed by **agreed statement** under CRC 8.134 if
    the parties can agree on a fair condensed narrative of the oral proceedings; otherwise, appellant elects
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a **settled statement** under CRC 8.137 prepared by appellant and settled by the trial court.

- [] **No record of oral proceedings.** -- Not selected; record of oral proceedings is needed for prong-two and 47(b) privilege rulings argued at the May 12, 2026 hearing.

Election regarding the record of written documents (CRC 8.121(b)(2))

- [x] **Clerk's transcript (CRC 8.122)** -- ELECTED.
- [] **Appendix (CRC 8.124)** -- not elected (consider as alternative).

Documents to include in the clerk's transcript / appendix

TODO: itemize required documents per CRC 8.122(b)(1) plus designated documents per CRC 8.122(b)(3). At minimum:

- Notice of appeal
- Notice designating record
- Operative complaint (FAC) and any TAC lodged (Exhibit T)
- Anti-SLAPP motion, opposition, reply, RFJNs, supplemental papers
- May 12, 2026 minute order (10210043.pdf)
- Any signed/entered written order on the anti-SLAPP motion
- All filings in the May 12 hearing package

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Cross-references:

- Source order: [10210043.pdf](../../10210043.pdf) (lines 132-135 disposition)
- Minutes confirming Reporter N/A: [COURT-OFFICIAL/CGC-25-631801/minutes/10210043-PARSED.md](../../COURT-OFFICIAL/CGC-25-631801/minutes/10210043-PARSED.md) (parsed metadata 'reporter: "N/A"'; minutes content line 24)

04-FEE-WAIVER-OR-FILING-FEE-NOTE

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title: "Fee Waiver / Filing-Fee Note for Notice of Appeal"
case: CGC-25-631801
authority: "Gov. Code 68630-68641; CRC 8.26, 3.50-3.58; Judicial Council Forms FW-001, FW-003"
deadline_rule: "Concurrent with notice of appeal (or as soon as fee status is known)"
filing_date_target: TBD
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# FEE-WAIVER REQUEST OR FILING-FEE NOTE

<!-- BLOCK 4: FEE / FEE-WAIVER
    If a trial-court fee waiver is in effect, it carries forward on appeal
    unless the Court of Appeal orders otherwise (CRC 8.26). If no fee waiver
    exists, file the appellate filing fee with the notice of appeal.
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## Status checklist

- [ ] Fee waiver currently in effect in trial court -- if YES, attach a copy of the trial-court order granting
    the waiver and cite CRC 8.26.
- [ ] Filing appellate fee waiver request concurrently -- if YES, attach Form FW-001 (Request to Waive Court
    Fees) and FW-003 if applicable.
- [ ] Paying filing fee at filing -- record receipt number and amount.

## Cross-rule notes

- CRC 8.26: trial-court fee waiver carries forward unless the Court of Appeal orders otherwise.
- CRC 3.50-3.58: trial-court fee-waiver procedure (used as fallback model for Court of Appeal).
- The notice of appeal is filed in the trial court (not the Court of Appeal); fees are paid at filing.

<!-- TODO: confirm waiver status and complete this note. -->

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**Cross-references:**

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- Source order: [10210043.pdf](../../10210043.pdf)

07-PROOF-OF-SERVICE

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title: "Proof of Service: Notice of Appeal Packet"
case: CGC-25-631801
authority: "CRC 8.25; CCP 1010.6, 1011, 1013, 1013a; CRC 1.21, 2.260, 2.251"
deadline_rule: "Concurrent with filing"
filing_date_target: TBD
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<!-- BLOCK 5: PROOF OF SERVICE -- use shared template at
      801-APPEAL/shared/PROOF-OF-SERVICE-TEMPLATE.md.
      Document title:
      "PLAINTIFF AND APPELLANT'S NOTICE OF APPEAL; CIVIL CASE INFORMATION
      STATEMENT (FORM APP-004); NOTICE DESIGNATING RECORD ON APPEAL
      (FORM APP-003); FEE-WAIVER REQUEST OR FILING-FEE NOTE
      (Code Civ. Proc. 904.1(a)(13); CRC 8.100, 8.104, 8.108, 8.121, 8.137)"
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<!-- TODO: complete from ../../shared/PROOF-OF-SERVICE-TEMPLATE.md.
      Note: CRC 8.25 governs service of notice of appeal documents. -->

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**Cross-references:**

- Source order: [10210043.pdf](../../10210043.pdf)
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